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Provision of January 30, 2025
Register of provisions
No. 38 of January 30, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the note of June 12, 2023, by which the Command
of the Local Police of the City of Rezzato (BS) reported the presence of a
surveillance system not compliant with the regulations on
the protection of personal data;

HAVING REGARD TO the minutes of the inspection carried out on June 9,
2023, by the local police at the commercial establishment "Guru Nanak";

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the secretary
general pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The report.

With the note of June 12, 2023, the Command of the
Local Police of the City of Rezzato (BS) transmitted the minutes of the inspection carried out
at the retail establishment of food and non-food products named "Guru
Nanak" located in Rezzato (BS), via Europa 19 (owned by Guru Nanak s.r.l.s. with registered office in
Brescia, via Canipari 4), where the non-compliant installation of a
surveillance system was ascertained, consisting of ten functioning
cameras (eight located inside the aforementioned commercial establishment and two
outside).

According to the report attached to the inspection carried out on June 9,
2023, the two external cameras were found to be capable of
recording public areas and authorization from the Labor Inspectorate had not been
requested, given the presence of an employee.

2. The notification of violations and the defense memoranda.

With the note of October 23, 2023, the Office sent to the
data controller the communication of the initiation
of proceedings for the violation of the general principles
regarding the protection of personal data
under Article 5, paragraph 1, letter a) and 6 of the
Regulation, as it was found that:
the external cameras had a field of view

such that they also recorded public areas exceeding those strictly pertinent to the establishment (garage ramp and public road); the Company, despite employing workers at the establishment, had failed to comply with the guarantee procedures required by Article 4 of Law No. 300/1970 referenced by Article 114 of the Code, in relation to the use of the surveillance system within the commercial establishment.

The party did not submit any defense writings (Article 18 of Law No. 689/1981).

3. The outcome of the investigation.

From the minutes of the inspection carried out by the Local Police, it emerged that, at the time of the inspection, the surveillance system installed at the commercial establishment was operational and capable of recording public areas as well.

It was indeed noted that the external cameras had a field of view such that they also recorded public areas exceeding those strictly pertinent to the establishment (garage ramp and public road); therefore, the processing was found to be carried out, in this respect, in violation of Article 6 of the Regulation as it lacked a legal basis.

It was also noted that the Company, despite employing workers at the establishment, had failed to comply with the aforementioned guarantee procedures required by Article 4 of Law No. 300/1970 referenced by Article 114 of the Code. In general, the use of surveillance systems may result in the processing of personal data under Article 4, paragraph 1, no. 2, of the Regulation, which must be carried out in compliance with the general principles contained in Article 5 of the Regulation.

With the general provision on surveillance adopted by this Authority on April 8, 2010 (available at the address www.garanteprivacy.it, doc. web n. 1712680), compatible with Regulation EU 679/2016 and with Guidelines No. 3/2019 on the processing of personal data, adopted by the EDPB on July 10, 2019, it is prescribed to the data controller that the processing be carried out in such a way as to limit the field of view of the cameras “to the area actually to be protected, avoiding, as far as possible, the recording of surrounding places and details that are not relevant (streets, buildings, commercial establishments, institutions)” (paragraph 6.2.2.1 of the provision).

Furthermore, if the surveillance system is capable of recording employees during work activities, the processing is lawful if it is in accordance with the applicable sector regulations (Article 5, par. 1, lett. a) of the Regulation).

In this regard, Article 88 of the Regulation has preserved the national provisions of greater protection (“more specific rules”) aimed at ensuring the protection of the rights and freedoms concerning the processing of personal data of workers. Article 114 of the Code, as a more specific provision regarding remote monitoring of workers, refers, among the conditions for the lawfulness of processing, to compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. According to this latter legal provision, in the case of video surveillance systems from which the possibility of remote monitoring of employees' activities arises, the installation must, in any case, be carried out prior to the conclusion of a trade union agreement with the unitary trade union representation or with the company trade union

representatives, or, if such an agreement could not be reached, or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate. The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation and proper operation of video surveillance systems.

4. Conclusions: declaration of unlawfulness of processing.

In light of the overall findings, the processing of personal data carried out by the party through the video surveillance systems operated by the Company is unlawful, as stated above, in relation to Articles 5, par. 1, lett. a) and 6 of the Regulation. The violation, established as outlined in the reasoning, cannot be considered “minor,” given the nature and severity of the violation itself, which concerned, among other things, the general principles of processing and compliance with specific safeguard measures for the rights of the Company's employees. Considering the Company's failure to participate in the proceedings, there is also a need to order the Company to modify the areas captured by the external cameras, so as to limit the processing to the only relevant areas and to proceed, if it has not already done so, with compliance with the provisions of Article 4, paragraph 1, Law No. 300 of May 20, 1970.

5. Order of injunction.

The Guarantor, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, par. 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the Company through the video surveillance system. With reference to the elements listed in Article 83, par. 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account: regarding the nature, gravity, and duration of the violation, the negligent conduct of the data controller has been considered; the circumstance that the party did not cooperate with the Authority during the proceedings, not sending its own defensive writings; the absence of specific previous violations against the party related to the discipline on the protection of personal data. It is also believed that the economic conditions of the offender, determined based on the Company's turnover, as per the financial statements for the year 2023, are relevant in this case, in light of the principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, par. 1, of the Regulation). In light of the above elements and the evaluations made, it is deemed appropriate, in this case, to apply to the Company the administrative sanction of payment of an amount equal to one thousand euros (€1,000.00). In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the type of violations established that concerned the general principles of processing, also regarding the need to comply with the applicable sector regulations for processing in the workplace.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Articles 57, par. 1, lett. f) and 83 of the Regulation, the unlawfulness of the processing carried out by Guru Nanak s.r.l.s (PI 04119650986), through the use of the video surveillance system, as stated in the reasoning, for the violation of Articles 5, par. 1, lett. a) of the Regulation;

ORDERS

Guru Nanak s.r.l.s to pay the sum of €1,000.00 (one thousand), as an administrative pecuniary sanction, for the violation indicated in the reasoning;

ORDERS

- the same Company to conform the processing carried out through the video surveillance system as indicated in point 3 of this decision, providing for:

a) limiting the operation of the cameras to only the relevant areas,
b) requesting the issuance of a specific authorization from the competent Labor Inspectorate, if it has not already been provided voluntarily.
- to the same Company, to pay the sum of euro 1,000.00 (one thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981.

It is noted that pursuant to art. 166, paragraph 8 of the Code, the possibility for the offender to settle the dispute by means of payment – always according to the methods indicated in the attachment – of an amount equal to half of the sanction imposed within the term referred to in art. 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

ORDERS

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website;
pursuant to art. 154-bis, paragraph 3, of the Code and art. 37 of the Garante Regulation no. 1/2019, the publication of this provision on the Garante's website;
pursuant to art. 17 of the Garante Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2, of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u), of the Regulation.

Pursuant to art. 78 of the Regulation, of arts. 152 of the Code and 10 of Legislative Decree no. 150 of September 1, 2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 30, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei